



CHAPTER 1

An Act to provide for carrying into effect the Treaty for the re-establishment of an independent and democratic Austria.
[6th July, 1955]

WHEREAS a Treaty for the re-establishment of an independent and democratic Austria, copies of which have been laid before each House of Parliament, was signed on behalf of Her Majesty at Vienna on the fifteenth day of May, nineteen hundred and fifty-five, and the said Treaty will come into operation upon the deposit of instruments of ratification in accordance with the provisions of the said Treaty:

And whereas it is expedient that Her Majesty should have power to do all such things as may be proper and expedient for giving effect to the said Treaty:

Now, therefore, be it enacted by the Queen's Most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Her Majesty may make such appointments, establish such offices, make such Orders in Council and do such things as appear to Her to be necessary for carrying out the said Treaty, and for giving effect to any of the provisions thereof.

Power of Her Majesty to give effect to Austrian State Treaty.

(2) Any Order in Council made under this section may provide that persons contravening or failing to comply with the provisions of the Order shall be guilty of offences against this section, and (except in so far as any such Order may provide for less penalties) any person guilty of an offence against this section shall be liable on summary conviction to a fine not exceeding one hundred

pounds or to imprisonment for a term not exceeding three months or to both such imprisonment and such fine, or on conviction on indictment to a fine not exceeding five hundred pounds or to imprisonment for a term not exceeding two years or to both such imprisonment and such fine.

(3) Any statutory instrument containing an Order in Council made under this section shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(4) Any Order in Council made under this section may be varied or revoked by a subsequent Order made thereunder.

(5) The expenses of any Minister incurred in carrying out the said Treaty shall be defrayed out of moneys provided by Parliament.

Short title.

2. This Act may be cited as the Austrian State Treaty Act, 1955.

PRINTED BY JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 2d. net

PRINTED IN GREAT BRITAIN

(38412)